

ORIGINAL

(S E R V E D)
(JANUARY 15, 1991)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

January 15, 1991

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

PROCEDURAL ORDER

**DIRECTION TO THE PARTIES REGARDING SEA-LAND SERVICE, INC.'S
MOTION TO DISMISS, OR ALTERNATIVELY TO STAY PROCEEDINGS PENDING
RESOLUTION OF JURISDICTIONAL ISSUES IN THE APPROPRIATE FORM**

By Procedural Order served on January 9, 1991, the parties were ordered to take certain action regarding the above-styled motion. The Procedural Order was served in the light of prehearing conferences and should be clear to all concerned. However, some question has been raised regarding its content and, therefore, to avoid any possible misunderstanding this Order is hereby substituted for the order served on January 9, 1991.

On December 4, 1990, Sea-Land filed the above-styled Motion. On December 11, 1990, a Procedural Order was served where it was:

ORDERED, that discovery should continue in this proceeding and that facts relating to the details of specific movements to determine whether or not they were in fact port to port movements are not only appropriate, but may be necessary to any ruling on Sea-Land's Motion to Dismiss. Sea-Land's participation in such discovery would in no way constitute a waiver of any of its jurisdictional arguments already made or to be made in this proceeding.

In order to properly consider the Motion, it is hereby,

ORDERED, that within thirty (30) days from the service of this Order the Complainants and Sea-Land submit for the record whatever information may be necessary to identify those Sea-Land shipments which were made after the filing of Interstate Commerce Commission ("ICC") Tariff No. 538 on June 23, 1989, through December 31, 1990, and which did not involve an ICC regulated motor carrier engaged in an ICC movement. Such information should include but need not be limited to:

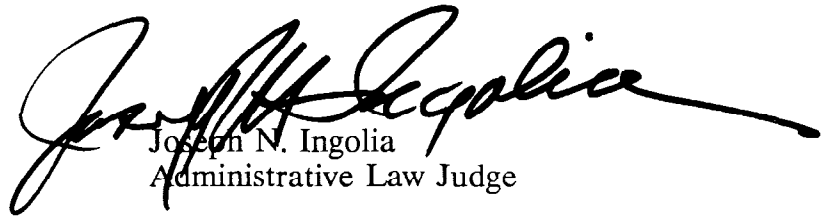
(1) A list of those Sea-Land shipments involving the Complainants made after June 23, 1989, which discloses precisely how the shipments moved. Such list should be supported by documentation which will be available on request.

(2) A list of all other Sea-Land shipments made after June 23, 1989, disclosing precisely how the shipment moved, supported by available documentation. Where a shipment or shipments did not involve an ICC regulated motor carrier engaged in an ICC movement but a precise

description of the movement cannot be given, the shipment should be so listed and identified.

(3) Where any of the parties is attempting to discovery facts relating to a pertinent and/or contested shipment, either by deposition or otherwise, such discovery should continue and the parties as well as non-parties subject to subpoena, absent some claim of privilege, are directed to give and to allow responses to questions relating to the pertinent and/or contested shipments. Any objections based on relevancy, or the like, may be made for the record. Further, any non-parties now under subpoena will be served copies of this Order by the party who requested the subpoena as expeditiously as possible; and it is,

FURTHER ORDERED, that during the pendency of the above-styled Motion all discovery of any of the parties relating to matters other than those set forth in the first ordering paragraph, as well as action on all other pending motions, will be held in abeyance, unless otherwise modified by the undersigned. Also, the time for completion of discovery will be extended during the period of abeyance.


Joseph N. Ingolia
Administrative Law Judge